

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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GARY THOMAS, JUNE THOMAS,
ANTHONY MIDDLETON and MYRA BROWN
Plaintiffs,

Index#: 25155/2015E

VERIFIED COMPLAINT

Jury Trial Demanded

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE ALFRED
SANTERSIRO (Shield No. 5194), DETECTIVE BACA
Shield No. 2975) and Police Officers "JOHN DOE"
#1-3, Individually and in their Official Capacity (the name
John Doe being fictitious, as the true names are presently
unkown),

Defendants.

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Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA
BROWN, by their attorney, JAY HEINRICH of THE HEINRICH LAW GROUP, P.C.,
complain of the Defendants herein and allege, upon information and belief, as follows:

1. Plaintiff GARY THOMAS was, at all times material hereto, a resident of the City and State of New York, County of Bronx.
2. Plaintiff JUNE THOMAS was, at all times material hereto, a resident of the City and State of New York, County of Bronx.
3. Plaintiff ANTHONY MIDDLETON was, at all times material hereto, a resident of the City and State of New York, County of Bronx.
4. Plaintiff MYRA BROWN was, at all times material hereto, a resident of the City and State of New York, County of Bronx.
5. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Defendant, THE CITY OF NEW YORK, is authorized by law to maintain and operate THE NEW YORK CITY POLICE DEPARTMENT, a duly authorized public authority and police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

7. At all times material hereto, the individually named Defendants DETECTIVE ALFRED SANTERSIRO (Shield No. 5194), DETECTIVE DANIEL BACA (Shield No. 2975) and Police Officers "JOHN DOE" #1-3 (*Police Officers whose names are not yet known or identified*) were employed by THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and were duly sworn police officers of THE NEW YORK CITY POLICE DEPARTMENT and were acting under the supervision of said department and according to their official duties and the training provided to them by THE NEW YORK CITY POLICE DEPARTMENT.

8. At all times material hereto the Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, ordinances, laws, statutes, customs, usages, policies and/or practices of the State of New York and/or the City of New York.

9. Each and all of the acts of the Defendants alleged herein were done by said Defendants while acting within the scope of their employment by Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. Each and all acts of the Defendants alleged herein were done by said Defendants while acting in furtherance of their employment by Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

FACTS AS TO PLAINTIFF GARY THOMAS

11. On or about June 18, 2014, at approximately 2:30 p.m., Plaintiff GARY THOMAS, was lawfully in his vehicle at the corner of Jesup Avenue and Grant Highway, Bronx, New York.

12. At the aforesaid time and place, Defendant officers demanded Plaintiff GARY THOMAS exit his vehicle, searched him, searched his vehicle, and placed Plaintiff GARY THOMAS under arrest, handcuffing plaintiff with his arms tightly behind his back.

13. At no time on June 18, 2014 did Defendants possess probable cause to arrest Plaintiff GARY THOMAS.

14. At no time on June 18, 2014 did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff GARY THOMAS.

15. The seizure and detention of Plaintiff GARY THOMAS was without probable cause and without justification in law or in fact.

16. Thereafter, Plaintiff GARY THOMAS was transported to a nearby police precinct wherein he was accused of Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03, and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10.

17. At no time on June 18, 2014, did Plaintiff GARY THOMAS i) possess a controlled substance, ii) divert prescription medications, or iii) behave unlawfully in any way.

18. Plaintiff GARY THOMAS was held in a cell at the police precinct on June 18, 2014 until approximately 10:00 p.m.

19. Defendants then transported Plaintiff GARY THOMAS in a police vehicle to Bronx County Central Booking. Defendants detained Plaintiff GARY THOMAS in Bronx County

Central Booking until approximately 9:00 p.m. on June 19, 2014.

20. In connection with Plaintiff GARY THOMAS's arrest, Defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

21. Plaintiff GARY THOMAS was arraigned before a judge in Criminal Court of the City of New York, Bronx County, at approximately 8:00 p.m. on June 19, 2014, and was formally charged with Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor) , and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

22. The case against Plaintiff GARY THOMAS was assigned docket number 2014BX032625.

23. At arraignment Plaintiff GARY THOMAS was released on his own recognizance. The next date scheduled for Plaintiff to appear in Court was set for June 24, 2014.

24. Plaintiff GARY THOMAS retained private counsel to represent him with respect to the charges filed against him pending under docket number 2014BX032625.

25. Plaintiff GARY THOMAS appeared in Criminal Court on June 24, 2014 as required. The case was then adjourned to July 30, 2014, and adjourned again to September 30, 2014, at which time the B Felony charge of Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) against Plaintiff GARY THOMAS was dismissed voluntarily by the prosecution. On September 30, 2014, the prosecution declared that they were 'Not Ready' as to the remaining Misdemeanor counts pending against Plaintiff GARY

THOMAS, and the case was adjourned to October 23, 2014.

26. On October 23, 2014 the case against Plaintiff GARY THOMAS was adjourned again, due to the People being 'Not Ready', to December 8, 2014, and finally adjourned, for the same reason, to January 7, 2015.

27. On January 7, 2015, all of the charges against Plaintiff GARY THOMAS were dismissed.

28. As a result of his unlawful arrest, Plaintiff GARY THOMAS spent approximately thirty (30) hours in police custody and made six (6) court appearances, subsequent to his initial arraignment, before all charges against him were dismissed in their entirety.

29. As a result of the foregoing, Plaintiff GARY THOMAS was suspended without pay from his employment as a bus driver for the Metropolitan Transit Authority for a period of seven months.

30. As a result of the foregoing, Plaintiff GARY THOMAS sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, shame, and deprivation of his constitutional rights, and Plaintiff also incurred monetary costs and suffered other economic damages.

FACTS AS TO PLAINTIFF JUNE THOMAS

31. On or about June 18, 2014, at approximately 2:30 p.m., Plaintiff JUNE THOMAS, was lawfully in her brother GARY THOMAS's vehicle at the corner of Jesup Avenue and Grant Highway, Bronx, New York.

32. At the aforesaid time and place, Defendant officers demanded plaintiff JUNE THOMAS exit the vehicle, searched her, searched the vehicle, and placed Plaintiff JUNE THOMAS under arrest handcuffing plaintiff with her arms tightly behind her back.

33. At no time on June 18, 2014, did Defendants possess probable cause to arrest Plaintiff JUNE THOMAS.

34. At no time on June 18, 2014, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff JUNE THOMAS.

35. The seizure and detention of Plaintiff JUNE THOMAS was without probable cause and without justification in law or in fact.

36. Thereafter, Plaintiff JUNE THOMAS was transported to a nearby police precinct wherein she was accused of Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor), and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

37. At no time on June 18, 2014, did plaintiff JUNE THOMAS i) possess a controlled substance, ii) divert prescription medications, or iii) behave unlawfully in any way.

38. Plaintiff JUNE THOMAS was held in a cell at the police precinct on June 18, 2014 until approximately 10:00 p.m.

39. Defendants then transported Plaintiff JUNE THOMAS in a police vehicle to Bronx County Central Booking. Defendants detained Plaintiff JUNE THOMAS in Bronx County Central Booking until approximately 9:00 p.m. on June 19, 2014.

40. In connection with Plaintiff JUNE THOMAS's arrest, Defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

41. Plaintiff JUNE THOMAS was arraigned before a judge in Criminal Court of the City of

New York, at approximately 8:00 p.m. on June 19, 2014, and was formally charged with Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor), and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

42. The case against Plaintiff JUNE THOMAS was assigned docket number 2014BX032624.

43. At arraignment Plaintiff JUNE THOMAS was released on her own recognizance. The next date scheduled for Plaintiff JUNE THOMAS to appear in Court was set for June 24, 2014.

44. Plaintiff JUNE THOMAS retained private counsel to represent her with respect to the charges filed against her pending under docket number 2014BX032624.

45. Plaintiff JUNE THOMAS appeared in Criminal Court on June 24, 2014 as required. The case was then adjourned to July 30, 2014, and adjourned again to September 30, 2014, at which time the B Felony charge of Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) against Plaintiff JUNE THOMAS was dismissed voluntarily by the prosecution. On September 30, 2014, the prosecution declared that they were 'Not Ready' as to the remaining Misdemeanor counts pending against Plaintiff JUNE THOMAS, and the case was adjourned to October 23, 2014.

46. On October 23, 2014 the case against Plaintiff JUNE THOMAS was adjourned again, due to the People being 'Not Ready', to December 8, 2014, and finally adjourned, for the same reason, to January 7, 2015.

47. On January 7, 2015, all of the charges against Plaintiff JUNE THOMAS were dismissed.

48. As a result of the foregoing, Plaintiff JUNE THOMAS spent approximately thirty (30)

hours in police custody and made six (6) court appearances subsequent to her arraignment before all charges against her were dismissed in their entirety.

49. As a result of the foregoing, Plaintiff JUNE THOMAS sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, shame, and deprivation of her constitutional rights, and Plaintiff JUNE THOMAS also incurred monetary costs and suffered other economic damages.

FACTS AS TO PLAINTIFF ANTHONY MIDDLETON

50. On or about June 18, 2014, at about 11:30 a.m., Plaintiff ANTHONY MIDDLETON attended a doctor's appointment for follow-up treatment due to an injury which caused Plaintiff ANTHONY MIDDLETON chronic pain and stiffness.

51. On or about June 18, 2014, at about 1:30 p.m., Plaintiff ANTHONY MIDDLETON filled a prescription for medications prescribed to him by his physician to treat his chronic pain and stiffness.

52. On or about June 18, 2014, at about 2:30 p.m., Plaintiff ANTHONY MIDDLETON was lawfully on the corner of Jesup Avenue and Grant Highway, Bronx, New York.

53. At the aforesaid time and place, Defendant officers confronted Plaintiff ANTHONY MIDDLETON searched his person, and placed Plaintiff ANTHONY MIDDLETON under arrest, handcuffing plaintiff with his arms tightly behind his back.

54. At no time on June 18, 2014, did Defendants possess probable cause to arrest Plaintiff ANTHONY MIDDLETON.

55. At no time on June 18, 2014, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff ANTHONY MIDDLETON.

56. The seizure and detention of Plaintiff ANTHONY MIDDLETON was without probable cause and without justification in law or in fact.

57. Thereafter, Plaintiff ANTHONY MIDDLETON was transported to a nearby police precinct wherein he was accused of Criminal Sale of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.39(1) (B Felony), Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor), and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

58. At no time on June 18, 2014, did plaintiff ANTHONY MIDDLETON i) sell a controlled substance, ii) possess a controlled substance in violation of the law or with the intention of violating any law, iii) divert prescription medications, or iv) behave unlawfully in any way.

59. Plaintiff ANTHONY MIDDLETON was held in a cell at the police precinct on June 18, 2014 until approximately 10:00 p.m.

60. Defendants then transported Plaintiff ANTHONY MIDDLETON in a police vehicle to Bronx County Central Booking. Defendants detained Plaintiff ANTHONY MIDDLETON in Bronx County Central Booking until approximately 9:00 p.m. on June 19, 2014.

61. In connection with Plaintiff ANTHONY MIDDLETON's arrest, Defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

62. Plaintiff ANTHONY MIDDLETON was arraigned before a judge in Criminal Court of the City of New York, Bronx County, at approximately 8:00 p.m. on June 19, 2014, and was formally charged with Criminal Sale of a Controlled Substance in the Third Degree, in violation

of New York Penal Law §220.39(1) (B Felony), Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor), and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

63. The case against Plaintiff ANTHONY MIDDLETON was assigned docket number 2014BX032627.

64. At arraignment, the Judge ordered Plaintiff ANTHONY MIDDLETON held on \$5,000 insurance company bail bond or \$2,500 cash bail.

65. Plaintiff ANTHONY MIDDLETON was unable to post bail and was remanded to the New York City Department of Corrections.

66. On June 24, 2014, Plaintiff ANTHONY MIDDLETON was produced to Court by the New York City Department of Corrections.

67. On June 24, 2014, Plaintiff ANTHONY MIDDLETON was release on his own recognizance by the Court in accordance with Criminal Procedure Law §180.80. On June 24, 2014, the case against Plaintiff ANTHONY MIDDLETON was adjourned to August 11, 2014.

68. Plaintiff ANTHONY MIDDLETON was unable to retain private counsel to represent him with respect to the charges filed against him pending under docket number 2014BX032627 and was assigned a public defender.

69. Plaintiff ANTHONY MIDDLETON obtained a copy of his prescriptions from June 18, 2014 and submitted them to his public defender, who, upon information and belief, forwarded such prescriptions to the District Attorney assigned to the case.

70. Plaintiff ANTHONY MIDDLETON appeared in Criminal Court on August 11, 2014 as

required. The prosecution declared that there had been 'No Grand Jury Action' in the case, and the case was adjourned to October 8, 2014.

71. Plaintiff ANTHONY MIDDLETON appeared in Criminal Court on October 8, 2014 as required. The prosecution declared that there had been 'No Grand Jury Action' in the case, and the case was adjourned to December 15, 2014.

72. On December 15, 2014, all of the charges against Plaintiff ANTHONY MIDDLETON were dismissed.

73. As a result of the foregoing, Plaintiff ANTHONY MIDDLETON spent approximately thirty (30) hours in police custody and five (5) days in the custody of the New York City Department of Corrections. Plaintiff ANTHONY MIDDLETON also made three (3) court appearances subsequent to his arraignment before all charges against him were dismissed in their entirety.

74. As a result of the foregoing, Plaintiff ANTHONY MIDDLETON sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, shame, and deprivation of his constitutional rights, and Plaintiff ANTHONY MIDDLETON also incurred monetary costs and suffered other economic damages.

FACTS AS TO PLAINTIFF MYRA BROWN

75. On or about June 18, 2014, at approximately 2:30 p.m., Plaintiff MYRA BROWN, was lawfully at the corner of Jesup Avenue and Grant Highway, Bronx, New York.

76. At the aforesaid time and place, Defendant officers confronted Plaintiff MYRA BROWN searched her person, and placed Plaintiff MYRA BROWN under arrest, handcuffing Plaintiff MYRA BROWN with her arms tightly behind her back.

77. At no time on June 18, 2014, did Defendants possess probable cause to arrest Plaintiff

MYRA BROWN.

78. At no time on June 18, 2014, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff MYRA BROWN.

79. The seizure and detention of Plaintiff MYRA BROWN was without probable cause and without justification in law or in fact.

80. Thereafter, Plaintiff MYRA BROWN was transported to a nearby police precinct wherein she was accused of Criminal Sale of a Controlled Substance in the Third Degree, in violation of New York Penal Law §20.39(1) (B Felony), Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor), and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

81. At no time on June 18, 2014, did Plaintiff MYRA BROWN i) sell a controlled substance, ii) possess a controlled substance, iii) divert prescription medications, or iv) behave unlawfully in any way.

82. Plaintiff MYRA BROWN was held in a cell at the police precinct on June 18, 2014 until approximately 10:00 p.m.

83. Defendants then transported Plaintiff MYRA BROWN in a police vehicle to Bronx County Central Booking. Defendants detained Plaintiff MYRA BROWN in Bronx County Central Booking until approximately 9:00 p.m. on June 19, 2014.

84. In connection with Plaintiff MYRA BROWN's arrest, Defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

85. Plaintiff MYRA BROWN was arraigned before a judge in Criminal Court of the City of New York, at approximately 8:00 p.m. on June 19, 2014, and formally charged with Criminal Sale of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.39(1) (B Felony), Criminal Possession of a Controlled Substance in the Third Degree, in violation of New York Penal Law §220.16(1) (B Felony), Criminal Possession of a Controlled Substance in the Seventh Degree, in violation of New York Penal Law §220.03 (A Misdemeanor), and Criminal Diversion of Prescription Medications and Prescriptions, in violation of New York Penal Law §178.10 (A Misdemeanor).

86. The case against Plaintiff MYRA BROWN was assigned docket number 2014BX032626.

87. At arraignment, Plaintiff MYRA BROWN was released on her own recognizance—despite the prosecution’s request that the Court set bail in the amount of \$5,000--and the next date scheduled for Plaintiff MYRA BROWN to appear in Court was set for June 24,, 2014.

88. Plaintiff MYRA BROWN was unable to retain private counsel to represent her with respect to the charges filed against her pending under docket number 2014BX032626 and was assigned a public defender.

89. Plaintiff MYRA BROWN appeared in Criminal Court on June 24, 2014 as required, the prosecution declared that there had been ‘No Grand Jury Action’ in the case, and the case was adjourned to September 30, 2014.

90. Plaintiff MYRA BROWN appeared in Criminal Court on September 30, 2014 as required, the prosecution declared that there had been ‘No Grand Jury Action’ in the case, and the case was adjourned to December 9, 2014.

91. Plaintiff MYRA BROWN appeared in Criminal Court on December 9, 2014 as required, the prosecution declared that there had been ‘No Grand Jury Action’ in the case, and the case

was adjourned to February 24, 2015.

92. On February 24, 2015, all of the charges against Plaintiff MYRA BROWN were dismissed.

93. As a result of the foregoing, Plaintiff MYRA BROWN spent approximately thirty (30) hours in police custody and made five (5) court appearances subsequent to her arraignment before all charges against her were dismissed in their entirety.

94. As a result of the foregoing, Plaintiff MYRA BROWN sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, shame, and deprivation of her constitutional rights, and Plaintiff MYRA BROWN also incurred monetary costs and suffered other economic damages.

AS TO ALL PLAINTIFFS

95. On or about August 19, 2015, Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN each duly served upon, presented to and filed with the Defendant THE CITY OF NEW YORK, a Notice of Claim setting forth the date of, the time when, the place where and the manner in which each of their claims arose.

96. By Order of the Supreme Court of the State of New York, County of Bronx, dated September 17, 2015, Plaintiffs' Notices of Claim, filed and served on Defendant THE CITY OF NEW YORK, on August 19, 2015, were deemed by the Court to have been timely served.

97. More than thirty (30) days have elapsed since Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN served their Notices of Claim upon Defendant THE CITY OF NEW YORK, and Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof.

98. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General

99. All conditions precedent to the bringing of this action have been complied with.

100. This action was commenced, by Summons with Notice, within one year and ninety (90) days after the accrual of the cause of action herein.

101. This action falls within one or more of the exceptions as outlined in C.P.L.R. §1602.

**AS AND FOR A FIRST CAUSE OF ACTION AS TO ALL PLAINTIFFS
DEPRIVTION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

102. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered “1” through “101” with the same force and effect as if fully set forth herein.

103. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

104. All of the aforementioned acts deprived each Plaintiff of their rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

105. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers employed by THE NEW YORK CITY POLICE DEPARTMENT with all the actual and/or apparent authority attendant thereto.

106. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT,

all under the supervision of ranking officers of said department.

107. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

108. As a result of Defendants' unconstitutional conduct, each Plaintiff suffered loss of liberty, insult and embarrassment, emotional pain and suffering, and other compensable injuries, for which they are entitled to an award of compensatory damages.

109. Plaintiffs are entitled to an award of punitive damages to punish Defendants for their unconstitutional conduct and to deter them from engaging in similar unconstitutional conduct in the future.

**AS AND FOR A SECOND CAUSE OF ACTION AS TO ALL PLAINTIFFS
FALSE ARREST/FALSE IMPRISONMENT UNDER 42 U.S.C. §1983**

110. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered "1" through "109" with the same force and effect as if fully set forth herein

111. As alleged above, each Plaintiff was seized, detained, arrested, and imprisoned by Defendants.

112. The Defendants intended to, and did, confine the Plaintiffs.

113. Plaintiffs were conscious of the confinement.

114. Plaintiffs did not consent to the confinement.

115. The confinement of Plaintiffs was not otherwise privileged.

116. There was no reasonable suspicion, probable cause, arguable probable cause, or other legal justification for Plaintiffs' seizure, detention, arrest, and imprisonment by the Defendants.

117. Defendants are not entitled to qualified immunity for wrongly seizing, detaining, arresting, and imprisoning Plaintiffs.

118. Defendants' actions violated each of Plaintiffs' clearly established rights under the Fourth

Amendment.

119. It was not objectively reasonable for Defendants to believe that their actions did not violate Plaintiffs' rights.

120. Defendants acted with intentional, knowing, callous, and/or reckless indifference to Plaintiffs' rights.

121. As a result of Defendants' unconstitutional conduct, plaintiffs suffered loss of liberty, insult and embarrassment, emotional pain and suffering, incurred monetary costs and suffered other economic damages, and other compensable injuries, for which they are entitled to an award of compensatory damages

122. Plaintiffs are entitled to an award of punitive damages to punish Defendants for their unconstitutional conduct and to deter them from engaging in similar unconstitutional conduct in the future.

**AS AND FOR A THIRD CAUSE OF ACTION AS TO ALL PLAINTIFFS
MALICIOUS PROSECUTION UNDER 42 U.S.C. §1983**

123. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered "1" through "122" with the same force and effect as if fully set forth herein.

124. Defendants initiated a criminal prosecution against each Plaintiff.

125. Defendants lacked probable cause to charge each Plaintiff with any criminal offense.

126. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

127. Defendants did not make a complete and full statement of facts to the District Attorney.

128. The prosecution against each Plaintiff was terminated in each such Plaintiff's favor.

129. Defendants are not entitled to qualified immunity for maliciously prosecuting Plaintiffs.

130. Defendants' actions violated each Plaintiff's clearly established rights under the Fourth Amendment.

131. It was not objectively reasonable for Defendants to believe that their actions did not violate Plaintiffs' rights.

132. Defendants acted with malice in initiating and continuing criminal proceedings against each Plaintiff.

133. Defendants acted with intentional, knowing, callous, and/or reckless indifference to Plaintiffs' rights.

134. Each Plaintiff suffered a deprivation of liberty within the meaning of the Fourth Amendment because they were required to appear in court in connection with the criminal charges a number of times.

135. As a result of the foregoing, Plaintiffs' liberties were restricted for an extended period of time, they were put in fear for their safety, and were humiliated and subjected to handcuffing and other physical restraints without probable cause, suffered insult, embarrassment and humiliation, emotional pain and suffering, were subjected to mental and physical distress, and incurred monetary costs and suffered other economic damages and compensable injuries, for which they are each entitled to an award of compensatory damages.

136. Plaintiffs are entitled to an award of punitive damages to punish Defendants for their unconstitutional conduct and to deter them from engaging in similar unconstitutional conduct in the future.

**AS AND FOR A FOURTH CAUSE OF ACTION AS TO ALL PLAINTIFFS
COMMON LAW FALSE ARREST**

137. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered "1" through "136" with the same force and effect as if fully set forth herein.

138. Defendant police officers seized and arrested each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN in the absence of probable cause and without warrants on false criminal charges.

139. As a result of the foregoing conduct by Defendants, Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN each were subjected to illegal, improper and false arrests by the Defendants and taken into custody. The aforesaid actions by the Defendants constituted a deprivation of Plaintiffs' rights.

140. As a result of the foregoing, Plaintiffs' liberties were restricted for an extended period of time, they were put in fear for their safety, and were humiliated and subjected to handcuffing and other physical restraints without probable cause, suffered insult, embarrassment and humiliation, emotional pain and suffering, were subjected to mental and physical distress, and incurred monetary costs and suffered other economic damages and compensable injuries, for which they are each entitled to an award of compensatory damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS TO ALL PLAINTIFFS
COMON LAW FALSE IMPRISONMENT**

141. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered "1" through "140" with the same force and effect as if fully set forth herein.

142. As a result of the foregoing, each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN were caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted, their liberties restricted for an extended period of time, they were put in fear for their safety, were humiliated and were subjected to handcuffing and other physical restraints.

143. Each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN were conscious of said confinement and did not consent to the same.

144. The confinement of each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN was without probable cause and was not otherwise privileged.

145. As a result of the aforementioned conduct, each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom, were subjected to handcuffing and other physical restraints without probable cause, suffered emotional pain and suffering, were subjected to mental and physical distress, and incurred monetary costs and suffered other economic damages and compensable injuries, for which they are each entitled to an award of compensatory damages.

**AS AND FOR A SIXTH CAUSE OF ACTION AS TO ALL PLAINTIFFS
COMMON LAW MALICIOUS PROSECUTION**

146. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered “1” through “145” with the same force and effect as if fully set forth herein.

147. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

148. Defendants did not make a complete and full statement of facts to the Bronx County District Attorney.

149. Defendants withheld exculpatory evidence from the Bronx County District Attorney.

150. Defendants were directly and actively involved in the initiation and continuation of criminal proceedings against Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN.

151. Defendants lacked probable cause to initiate and continue criminal proceedings against Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN.

152. Defendants acted with malice in initiating and continuing criminal proceedings against Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN

153. Notwithstanding the aforementioned conduct of Defendants, all charges against each Plaintiff were terminated in their favor.

154. As a result of the aforementioned conduct, each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom, were subjected to handcuffing and other physical restraints without probable cause, suffered emotional pain and suffering, were subjected to mental and physical distress, and incurred monetary costs and suffered other economic damages and compensable injuries, for which they are each entitled to an award of compensatory damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS TO ALL PLAINTIFFS
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

155. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered "1" through "154" with the same force and effect as if fully set forth herein.

156. The actions of Defendants were extreme, outrageous and exceeded all reasonable bounds of decency and any norms acceptable to society.

157. Defendants acted with the desire and intent to cause each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN emotional distress or acted under circumstances known to them which made it substantially certain that they would cause each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN emotional distress.

158. Defendants acted in a manner as to negligently cause emotional distress to each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN.

159. Defendants acted with utter disregard of the consequences of their actions.

160. The aforementioned conduct was committed by Defendants while acting within the scope of, and acting in furtherance of, the employment by THE CITY OF NEW YORK.

161. As a result of the foregoing, each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

AS AND FOR AN EIGHTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION AND/OR RETENTION

162. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs numbered "1" through "161" with the same force and effect as if fully set forth herein.

163. Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the individual police officer Defendants herein.

164. Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent and careless when they selected, hired, trained, retained, assigned, and supervised the individual police officer Defendants herein.

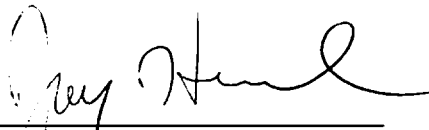
165. Due to the negligence of the Defendants as set forth above, each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN suffered embarrassment, humiliation shock, fright, and loss of freedom.

166. As a result of the foregoing, each of Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN are entitled to compensatory damages and are further entitled to punitive damages against the individual defendants.

WHEREFORE, Plaintiffs GARY THOMAS, JUNE THOMAS, ANTHONY MIDDLETON and MYRA BROWN respectfully request judgment against Defendants as follows:

- i. An order awarding compensatory damages in an amount to be determined at trial;
- ii. An order awarding punitive damages in an amount to be determined at trial;
- iii. Reasonable attorney's fees and costs under 42 U.S.C. §1988; and
- iv. Directing such other and further relief as the Court may deem just and proper, together with attorney's fees, interest, costs and disbursements of this action.

Dated: Bronx, New York
December 28, 2017

By: 
JAY HEINRICH
THE HEINRICH LAW GROUP, P.C.
Attorney of Plaintiffs
189 East 163rd Street
Bronx, New York 10451
(718) 588-4400
jh@heinrichlawgroup.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
GARY THOMAS, JUNE THOMAS, ANTHONY
MIDDLETON, and MYRA BROWN

Index No.: 25155/2015E

Plaintiffs,

- against -

VERIFICATION
BY AFFIDAVITTHE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, . . .Defendants.
-----XState of New York)
)ss.:
County of Bronx)

Gary Thomas, being duly sworn, deposes and says as follows:

1. I am one of the Plaintiffs in the action herein.
2. I have read the annexed Complaint and, with respect to the allegations therein applicable to me, know the contents thereof to be true, except those matters therein alleged to be upon information and belief, and as to those matters I believe them to be true.



 Gary Thomas
Sworn to before me on this
28th day of December, 2017


 NOTARY PUBLIC
JAY HEINRICH
NOTARY PUBLIC-STATE OF NEW YORK
No. 02HE6307999
Qualified in Rockland County
My Commission Expires July 21, 2018

3/2/08/2018

JAY HEINRICH
NOTARY PUBLIC-STATE OF NEW YORK
No. 02566302888
Qualified in Rockland County
My Commission Expires July 31, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
GARY THOMAS, JUNE THOMAS, ANTHONY
MIDDLETON, and MYRA BROWN

Index No.: 25155/2015E

Plaintiffs,

- against -

VERIFICATION
BY AFFIDAVITTHE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, ...Defendants.
-----XState of New York)
)ss.:
County of Bronx)

June Thomas, being duly sworn, deposes and says as follows:

1. I am one of the Plaintiffs in the action herein.
2. I have read the annexed Complaint and, with respect to the allegations therein applicable to me, know the contents thereof to be true, except those matters therein alleged to be upon information and belief, and as to those matters I believe them to be true.



June Thomas

Sworn to before me on this
28th day of December, 2017.


NOTARY PUBLIC

JAY HEINRICH
NOTARY PUBLIC-STATE OF NEW YORK
No. 02HE6307999
Qualified in Rockland County
My Commission Expires July 21, 2018

02/08/2018

JAY HEINRICH
NOTARY PUBLIC-STATE OF NEW YORK
No. 02549302000
Qualified in Rockland County
My Commission Expires July 31, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
GARY THOMAS, JUNE THOMAS, ANTHONY
MIDDLETON, and MYRA BROWN

Index No.: 25155/2015E

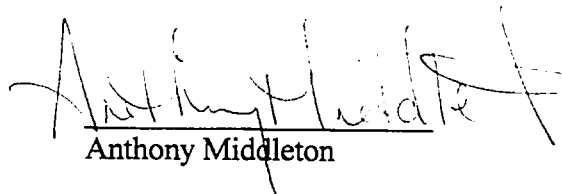
Plaintiffs,

- against -

VERIFICATION
BY AFFIDAVITTHE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, . . .Defendants.
-----XState of New York)
)ss.:
County of Bronx)

Anthony Middleton, being duly sworn, deposes and says as follows:

1. I am one of the Plaintiffs in the action herein.
2. I have read the annexed Complaint and, with respect to the allegations therein applicable to me, know the contents thereof to be true, except those matters therein alleged to be upon information and belief, and as to those matters I believe them to be true.


 Anthony Middleton
Sworn to before me on this
28th day of June, 2017.

 NOTARY PUBLIC

 JAY HEINRICH
 NOTARY PUBLIC-STATE OF NEW YORK
 No. 02HE6307999
 Qualified in Rockland County
 My Commission Expires July 21, 2018

02/22/2018

My Commission Expires July 31, 2018
Qualified in Rockland County
Not. 03HE9202699
NOTARY PUBLIC-STATE OF NEW YORK
JAY HEINRICH

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
GARY THOMAS, JUNE THOMAS, ANTHONY
MIDDLETON, and MYRA BROWN

Index No.: 25155/2015E

Plaintiffs,

- against -

VERIFICATION
BY AFFIDAVITTHE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, . . .Defendants.
-----XState of New York)
)ss.:
County of Bronx)

Myra Brown, being duly sworn, deposes and says as follows:

1. I am one of the Plaintiffs in the action herein.
2. I have read the annexed Complaint and, with respect to the allegations therein applicable to me, know the contents thereof to be true, except those matters therein alleged to be upon information and belief, and as to those matters I believe them to be true.


 Myra Brown
Sworn to before me on this
20th day of December, 2017.

 NOTARY PUBLIC

 JAY HEINRICH
 NOTARY PUBLIC-STATE OF NEW YORK
 No. 02HE6307999
 Qualified in Rockland County
 My Commission Expires July 21, 2018

92722/2018E

JAY HEINRICH
NOTARY PUBLIC-STATE OF NEW YORK
No. 05HE930599
Qualified in Rockland County
My Commission Expires July 31, 2018